

Court No. - 21

Case :- WRIT - C No. - 28444 of 2021

Petitioner :- Dharmendra Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Abhishek Chauhan, Ajeet Kumar Pathak

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Naheed Ara Moonis, J.

Hon'ble Saumitra Dayal Singh, J.

1. Heard Shri Abhishek Chauhan, learned counsel for the petitioner; Shri B.P. Singh Kachhawah, learned Standing Counsel for the State-respondent and; Shri Chetan Chatterjee, learned counsel for the respondent-corporation.
2. Challenge has been raised to the recovery pursuant to the final assessment made against the petitioner determining the electricity dues Rs. 3,43,084/-.
3. Against such final assessment order, petitioner has statutory remedy of filing an appeal under the Electricity Supply Code, 2005.
4. In view of the above, no interference is warranted by this Court under Article 226 of the Constitution of India.
5. The writ petition is accordingly **dismissed** on account of alternate statutory remedy as disputed questions of fact are difficult to be gone into, at this stage.

Order Date :- 10.11.2021

Prakhar